

The report of plaintiffs' counsel is satisfactory, and the distribution is deemed completed. The remaining \$6,000 may be disbursed to plaintiffs's counsel.

18. 9:00 AM

CASE NUMBER: MSC21-02258

CASE NAME: THOMAS VS. ECKERT

HEARING ON SUMMARY MOTION

FILED BY: BAYWOODS HOMEOWNERS ASSOC.

TENTATIVE RULING:

Before the Court is a motion for summary judgment or, in the alternative, summary adjudication, filed by Baywoods Homeowners Association and Homeowners Management Co., LLC (collectively "Baywoods defendants" or "moving parties"). The motion is **denied**, as set forth below. Defendant David Eckert's joinder is also **denied**.

I. Background

Plaintiff Adrienne Thomas purchased a condominium in 2006 and as part of that purchase, became subject to the applicable CC&Rs, which make the Baywoods Homeowners Association responsible for certain repairs, including maintaining, repairing, and replacing the Common Area pursuant to the recorded CC&Rs. (Separate Statement of Undisputed Material Fact, hereinafter "SSUMF," Fact. No. 1, and plaintiff's response.) The Baywoods CC&Rs define Building Common Area to include central heating and air-conditioning equipment. (SSUMF, Fact. No. 2, and plaintiff's response.) Management of the Common Area is vested in the Baywoods Homeowners Association. (SSUMF, Fact. No. 3, and plaintiff's response.)

Plaintiff does not know when it appeared or began, but in January 2021 plaintiff observed a soot-like dust in her unit and made a complaint about such dust to the HOA. (SSUMF, Fact. Nos. 4-7, and plaintiff's response.) Contractors cleaned plaintiff's unit and replaced components of the HVAC system—work plaintiff did not need to pay for. (SSUMF, Fact. Nos. 8-11, and plaintiff's response.)

In 2021, an HVAC contractor, Peter Tyndall, observed the dust collected in the HVAC filters, and recommended replacement of the HVAC system, though the HVAC system would not have caused any "soot." At deposition, Tyndall acknowledged a lack of expertise in mold or moisture issues, though he identified no statutory or code violations. (SSUMF, Fact. Nos. 12-14, 16-17, 19, and plaintiff's response.)

Plaintiff filed this action against David Eckert, as well as Baywoods Homeowners Association and Homeowners Management Co., LLC in October 2021. After a demurrer by defendant Eckert was sustained, plaintiff filed the operative Second Amended Complaint ("SAC") on May 31, 2023. Plaintiff therein alleges, *inter alia*, that Baywoods HOA failed to investigate complaints and complete required repairs. As a result, plaintiff alleges her unit was in a hazardous condition that caused her health issues and expenses.

The SAC alleges five causes of action: (1) breach of contract, (2) negligence, (3) negligence per se, (4) gross negligence, and (5) intentional infliction of emotional distress. In July of 2023, the defendants answered the SAC by way of general denial.

In early March of 2024, plaintiff's deposition was taken. She testified at that time that she did not know the cause of the soot-like condition, but that the HVAC system had been replaced after Tyndall recommended replacement. (SSUMF, Fact. Nos. 15, 20-22, and plaintiff's response.)

Baywoods defendants now moved for summary judgment or summary adjudication in the

alternative.

II. Motion and Opposition

Baywoods defendants argue that plaintiff cannot show an essential element of each claim. Specifically, they contend she cannot show causation.

In support of the motion, Baywoods defendants provide a declaration from counsel which attaches excerpts from plaintiff's deposition transcript, excerpts from the deposition transcript of HVAC inspector, Peter Tyndall, and excerpts from the CC&Rs. As required on this sort of motion, Baywoods defendants provide 24 facts they contend are "undisputed" and "material" in their SSUMF.

Plaintiff opposes the motion, arguing Baywoods defendants have not met their initial burden because they did not address her operative legal theory, which is based on mold from moisture intrusion through deteriorated siding. Plaintiff submits a response to the SSUMF as well as her own additional material facts she contends are disputed. She supports the opposition with her own declaration, wherein she states that, despite testifying at deposition that she did not know the cause of the condition, she found out the cause later that year upon hiring an expert. She further states that this was shared with Baywoods defendants "and has been a primary focus of fact discovery since that time." Plaintiff also provides a declaration from counsel, attaching various discovery documents, and a declaration from plaintiff's retained engineer, Peter Petrovsky.

The reply does not address the additional facts or specify why plaintiff is wrong about the breadth of the SAC and it being capable of embracing plaintiff's new mold theory. The reply argues it is plaintiff who "attempts to shift the burden" and that her evidence is too speculative to establish causation. Neither side has filed any evidentiary objections.

III. Standard

To be entitled to judgment as a matter of law, a defendant must show by admissible evidence that the action has no merit. (Code Civ. Proc., § 437c, subd. (a).) A defendant can meet this burden by demonstrating one or more elements cannot be established, or by showing a complete defense. (Code of Civ. Proc., § 437c, subd. (o).) The scope of the moving party's initial burden is "framed by the pleadings." (*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1102.)

A defendant moving for summary judgment need not conclusively negate an element of the plaintiff's cause of action, but may also show the plaintiff cannot establish an essential element by showing that the plaintiff does not possess, and cannot reasonably obtain, "needed evidence." (*Leyva*, 20 Cal.App.5th at 1102.) In making this showing, a defendant may use "admissions by the plaintiff following extensive discovery to the effect that [plaintiff] has discovered nothing" to support an essential element of the case. (*Id.* at 1102.) A defendant could also use "factually devoid discovery responses from which an absence of evidence may be reasonably inferred." (*Id.* at 1102-1103.)

Once the moving defendant has met that burden, the burden shifts to the plaintiff to show via specific facts that a triable issue of material fact exists. (Code of Civil Procedure § 437c, subd. (p)(2).) Although the burden of production may shift, the moving party always bears the burden of persuasion. (*Aguilar v. Atlantic Richfield* (2001) 25 Cal.4th 826, 850.) Even where an MSJ is unopposed, or the opposition is flawed, the Court cannot grant summary judgment unless the moving party meets its initial burden to show a cause of action is without merit. (*Leyva*, 20 Cal.App.5th at 1101; *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305.) "All doubts as to the propriety of granting the motion—i.e., whether there is any triable issue of material fact—are to be resolved in favor of the party opposing the motion." (*Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476,

1483.)

A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c (f)(2).)

IV. Discussion

The same basic flaw runs through the entirety of Baywoods defendants' motion. The problem is that they are seeking summary adjudication on factual theories that plaintiff is no longer pursuing – while entirely ignoring the theories that she is now pursuing. As to the construction issues, this means the motion focuses solely on the HVAC issue, which plaintiff is no longer espousing as the basis for her claims. Instead, she now bases her claims on siding issues – which the moving defendants address by pretending they aren't there. Similarly as to the IIED claim: The Court shared defendants' view that it was dubious, probably impossible, to rest something as strong as IIED on nothing more than a careless but not malicious failure of building maintenance. But plaintiff's opposition brief makes clear that this claim rests on an alleged campaign of harassment and accusations. Whether those allegations could support an IIED claim is not an issue now before the Court, because the moving defendants have intentionally not placed it there; neither their moving papers nor their reply says a word about these allegations.

It may be at least partially fair to observe that the movants are addressing plaintiff's case as initially pleaded rather than as it has developed through discovery and investigation. It may be prudent for plaintiff to consider amending her complaint, at some point before trial, to update her allegations to reflect the case she actually intends to put forward at trial. But as the Court will discuss, the existing pleading is sufficient to support reliance on these different factual theories for purposes of this motion. Moreover, it is also fair to assume that the moving defendants were aware of the theories they now try to ignore away.

A. MSJ – Motion Does not Address All Causes of Action

To obtain summary judgment, as opposed to summary adjudication, a defendant must show conclusively that all of the plaintiff's causes of action or legal theories fail as a matter of law. (See *Jimenez v. Protective Life Ins. Co.* (1992) 8 Cal.App.4th 528, 534.) As noted in the opposition here, the moving papers entirely fail to address the elements of the first cause of action (breach of contract). Since both the Notice of Motion and the SSUMF both label the "first" cause of action as one for negligence, this appears to have been an oversight. Separately, had moving parties shown *lack* of causation, like they argue they have done, the showing might defeat the breach of contract claim. They do not show such absence of causation, as described below.

B. MSA - Initial Burden

i. Issue 1: Negligence (2nd C/A)

In order to establish liability on a negligence theory, a plaintiff must prove: (a) a legal duty to use due care; (b) a breach of such legal duty; (c) the breach as the proximate or legal cause of the resulting injury. (*Victor v. Hedges* (1999) 77 Cal.App.4th 229, 238.)

Baywoods defendants' motion seeks to establish the lack of causation. They rely on 2023 deposition testimony from plaintiff and 2024 deposition testimony from her HVAC contractor. Notably, instead of offering *ultimate* facts with respect to each of the claims, Baywoods defendants list only what these witnesses purportedly "testified" at deposition, but the cited portions of the

deposition transcripts do not contain the testimonial evidence moving parties contend. Nor are the excerpts highlighted or searchable (as required by the Rules of Court), allowing the Court to identify whether the incorrect citations are typographical errors. (See e.g., SSUMF, Fact No. 5-15, 18-24.) Even if the transcripts showed what Baywoods defendants assert, the transcripts are outdated in the face of plaintiff's new theory of liability.

Plaintiff's opposition evidence demonstrates that her latest theory of causation is not related to soot, but to water intrusion and alleged failures to maintain the siding. Plaintiff asserts this cause was discovered when she hired an expert in 2024, after she filed the SAC and after the referenced depositions were taken. Plaintiff's opposition argues the SAC allegations are broad enough to encompass her operative mold theory, teeing up the issue in such a way that moving parties were required to foreclose it in their motion.

Instead of proactively addressing this new theory in the moving papers, Baywoods defendants avoid it altogether, apparently hoping the Court will allow them to rely on the SAC's description of "soot" to prevent plaintiff from pursuing the "new, unpleaded theory." (Reply, 2:4.)

The Court acknowledges the pleading itself is not as open-ended as a prudent attorney might have drafted. Plaintiff appears to have been representing herself and drafting the complaint without counsel's assistance. While a close question as to whether the SAC encompasses the new theory, the reply neglects to confront this issue head-on by explaining why, under a liberal construction, the SAC cannot encompass the current operative mold theory. Baywoods defendants further ignore the opposition evidence that demonstrates they have been made aware of this theory in 2024 (Declaration of Adrienne Thomas, ¶42), initiated destructive testing based on this theory (See Declaration of Colin Barreno, ¶15, Ex. 3), and have been responding to written discovery requests related to this theory since November 2025. (See Declaration of Colin Barreno, Ex. 5-8.)

The SAC alleges Baywoods defendants failed to maintain the common areas and restore her property to pre-loss condition. This is sufficient to require moving parties to explore and foreclose the potential contentions plaintiff might advance at trial. They have not done so. As described in *Leyva*, a defendant must, at a minimum, show the plaintiff cannot reasonably obtain "needed evidence." (*Id.* at 1102.) Baywoods defendants have not sufficiently narrowed potential causation to soot, thereby establishing soot causation is the "needed evidence." They have not presented "extensive discovery" to foreclose other theories, as shown by the narrative presented in the opposition papers. (*Ibid.*) Indeed, Baywoods defendants do not provide any written discovery responses from plaintiff whatsoever, let alone "factually devoid" ones. (*Id.* at 1102-1103.)

Baywoods defendants assert that plaintiff also cannot establish they "breached a duty" to her. Similar to the causation element, Baywoods defendants do not flesh out the manner in which plaintiff is contending they committed a breach. Accordingly, the argument that she *cannot* show a breach is not adequately presented.

Plaintiff asserts that a failure to maintain common areas is a question that necessarily includes maintaining siding. The evidence presented indicates no siding repairs were made despite a report concluding they were necessary. Where there is room for an honest difference of opinion between persons of average intelligence as to whether there has been a breach of duty in a negligence action, the question is one of fact that must be submitted to a jury. (*Johnson & Johnson Talcum Powder Cases* (2019) 37 Cal.App.5th 292, 323, citing *Putensen v. Clay Adams, Inc.* (1970) 12 Cal.App.3d 1062, 1077.)

The Court concludes moving parties do not meet their initial burden on the negligence cause

of action and, accordingly, need not proceed to examine triable issues.

ii. Issue 2: Negligence Per Se (3rd C/A)

As the moving papers state, negligence per se does not create an independent cause of action. (Memorandum of Points and Authorities in Support of Motion, 4:26-28, citing *Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1285.) Accordingly, the discussion above equally applies to this cause of action.

In addition, while plaintiff's HVAC contractor may have failed to "identify any statutory, regulatory, or code violation related to the HVAC system or any condition attributable to Defendants" at deposition (Memorandum of Points and Authorities, 5:1-3), this does not mean plaintiff herself does not have such a theory, or an expert who might have identified a violation.

On negligence per se, defendants fail to shift the burden to plaintiff and summary adjudication must be denied.

iii. Issue 3: Gross Negligence (4th C/A)

The motion seeks to eliminate the gross negligence cause of action based on the contention that plaintiff cannot show "a want of even scant care" or an "extreme departure from the ordinary standard of conduct." (Memorandum of Points and Authorities in Support of Motion, 5:13-16, citing *City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747, 754.)

Baywoods defendants' facts in support of this issue fail to acknowledge any theory outside of the soot issue, and also fail to pin down what, precisely, this theory is based on. Plaintiff, as noted above, asserts Baywoods defendants ignored recommendations for siding repair for years, as well as warnings about water intrusion, and this constitutes gross negligence. (See Response to SSUMF, Additional Material Fact Nos. 25-33.) The burden to demonstrate this will fall on plaintiff at trial, but on summary judgment, the burden to foreclose the issue falls on defendants.

The motion fails to eliminate the issue so summary adjudication must also be denied with respect to gross negligence.

iv. Issue 4: IIED (5th C/A)

As noted in the moving papers, intentional infliction of emotional distress requires a plaintiff to show extreme and outrageous conduct by the defendant, intent to cause emotional distress or reckless disregard of the probability of causing emotional distress, severe emotional distress, and causation. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050.)

The opposition points out that the underlying conduct here was not limited to the failure to repair an issue with plaintiff's unit. The opposition lists other allegations such as "racially charged and derogatory comments in group settings; calling code enforcement on Plaintiff; attempting to obtain a restraining order to prevent Plaintiff from pursuing remedies; obtaining Plaintiff's PG&E utility bills without authorization; sharing private financial information in open emails; turning off the HVAC during extreme heat; and Defendant Eckert's violation of the restraining order during the October 2024 site visit." (Opposition, 15:4-10, citing Declaration of Adrienne Thomas.)

Other factual allegations in the SAC include plaintiff's contention that David Eckert, who is alleged to have been acting on behalf of moving parties, and already owns 75 of the units, sought to force plaintiff to sell the property through his harassing conduct and accusations (that she had set her

own property on fire, that crack was being smoked in the unit, etc.). (See SAC, ¶¶2, 7, 15, 21, 25-30, 34.) If true, these acts could be the sort of conduct that qualifies as “outrageous” in the eyes of a reasonable juror.

The motion fails to isolate all facts upon which plaintiff will rely in attempting to prove this cause of action. Accordingly, it is unclear whether there are factual disputes. The motion proffers that plaintiff has not sought counseling, but that is not sufficient to show plaintiff has not suffered emotional distress. Additionally, regardless of whether the “dust” in plaintiff’s unit was caused by soot or mold, or something else, the alleged actions by Eckert (in his capacity representing the other defendants) may be what plaintiff intends to advance at trial. Judgment as a matter of law is not permitted absent some certainty about what plaintiff will assert.

Accordingly, the motion papers fail to shift the burden to plaintiff to show triable disputes of fact and summary adjudication cannot be granted with respect to the fifth cause of action.

C. Material Factual Disputes

Still, even if the Baywoods defendants had shifted the initial burden, plaintiff’s evidence demonstrates there are material facts in dispute. (See SSUMF, Fact Nos. 13-17, 20, 24, and plaintiff’s response.) While plaintiff may not be able to credibly advance a “soot” theory at trial, investigation reports from defendants’ own investigations could permit plaintiff to advance a mold theory. (See Response to SSUMF, Additional Material Fact Nos. 25-33.)

V. **Joinder**

I. Joinder Not Properly Noticed.

The notice of joinder was untimely. It was to be served no later than February 22, 2026. (See Code Civ. Proc, § 473c, subd. (a)(2) [a motion for summary judgment requires an 81-day period of notice]; *Frazee v. Seely* (2002) 95 Cal.App.4th 627, 636-637 [addressing summary judgment statute then in effect and holding joinder due at same time as motion].) Eckert filed and served his joinder on April 24, 2026 which did not provide sufficient notice. It must therefore be denied.

II. Evidentiary Matters

In support of her Opposition to the joinder, plaintiff raises objections to Eckert’s evidence. In granting or denying a motion for summary judgment or summary adjudication, the Court need rule only on those objections to evidence that it deems material to its disposition of the motion. (Code Civ. Proc., § 437c (q).) Accordingly, the Court declines to rule on plaintiff’s objections.

19. 9:00 AM CASE NUMBER: MSC21-02258
CASE NAME: THOMAS VS. ECKERT
HEARING IN RE: JOINDER TO BAYWOODS HOMEOWNERS ASSOCIATION & HOMEOWNERS
MANAGEMENT CO., LLC'S MSJ
FILED BY: ECKERT, DAVID
TENTATIVE RULING:

Please see Line 18 above.

20. 9:00 AM CASE NUMBER: N22-1091
CASE NAME: COMMUNITIES FOR A BETTER ENVIRONMENT VS. COUNTY OF CONTRA COSTA